No. 2023-CA-0578

COURT OF APPEAL FIRST CIRCUIT STATE OF LOUISIANA

RISE ST. JAMES, LOUISIANA BUCKET BRIGADE, SIERRA CLUB, CENTER FOR BIOLOGICAL DIVERSITY, HEALTHY GULF, EARTHWORKS, and NO WASTE LOUISIANA

Petitioners-Appellees

v.

LOUISIANA DEPARTMENT OF ENVIRONMENTAL QUALITY

Respondent-Appellant

ON APPEAL FROM THE 19TH JUDICIAL DISTRICT COURT, PARISH OF EAST BATON ROUGE, THE HONORABLE TRUDY M. WHITE, PRESIDING, DIVISION J, SECTION 27, CASE NUMBER 649,029

PETITIONERS-APPELLEES' MOTION FOR LEAVE TO FILE RESPONSE TO AMICI CURIAE BRIEFS

CIVIL PROCEEDING

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NOW INTO COURT, through undersigned counsel, come Petitioners-Appellees RISE St. James, Louisiana Bucket Brigade, Sierra Club, Center for Biological Diversity, Healthy Gulf, Earthworks, and No Waste Louisiana (collectively, "Appellees") who respectfully move this Court for leave to file a response to the amici curiae briefs. As grounds for this motion, Appellees provide the following:

1. On October 24, 2023, the Court granted four motions for leave to file amicus curiae briefs by the Louisiana Chemical Association ("LCA"), Louisiana Associate of Business and Industry ("LABI"), American Chemistry Counsel ("ACC"), and Greater Baton Rouge Industry Alliance ("GBRIA") (together, "trade associations") in this matter.

2. The ACC, LABI, and LCA briefs contain misstatements of the record not present in LDEQ's or Formosa Plastics' briefing, raise new issues, and cite new law not argued by the parties. The ACC brief raises entirely new evidence not in the administrative record in this case.

3. Allowing Appellees to respond to the ACC, LABI, and LCA briefs will aid the Court in identifying issues in the trade associations' briefs that were not raised by the parties and not considered by the district court in light of well-settled law that "issues not raised by the parties cannot be raised by amicus curiae on appeal." *Barfield v. Bolotte*, 2015-0847 (La. App. 1 Cir. 12/23/15), 185 So.3d 781,

784 (citing *Banker's Ins. v. Kemp*, 96-0469 (La. App. 1 Cir. 12/20/96), 686 So.2d 111, 114).

4. Allowing Appellees to respond to the ACC brief will also aid the Court in identifying new or additional evidence and facts that are not in the record to prevent improper use of the trade associations' briefs as vehicle to present such evidence. *Bouterie v. Crane*, 604 So.2d 1051, 1052 (La. Ct. App. 1992), rev'd on other grounds, 616 So.2d 657 (La. 1993).

5. Appellees would also like to aid the Court in its review of the trade association briefs by pointing out statements therein that contradict the record, mischaracterize the District Court's holding, and misstate the law. As the attached brief demonstrates, trade associations collectively misstate the record on appeal as it concerns to material facts like the size of Formosa Plastics' emissions contributions to NAAQS violations, the size of Formosa Plastics' air toxics emissions concentrations offsite, cumulative impact modeling, and the evidence LDEQ considered on greenhouse gas and ethylene oxide emissions. Moreover, Appellees briefly explain how amici make new mischaracterizations of applicable law. Appellees' attached response brief is limited to responding to new points raised in the trade associations' briefs that would otherwise go unanswered. It does not address the Appellant LDEQ's or Formosa Plastics' briefs, which Appellees have already briefed.

6. Giving Appellees the opportunity to respond in writing to the issues discussed above will allow Appellees to focus their oral argument on the matters of greatest interest to the Court, as well as the ten substantive issues raised by Appellants, in the time allotted.

7. Appellees do not seek to respond to the GBRIA brief, which merely restates LDEQ's Basis for Decision and provides no additional information.

WHEREFORE, Appellees respectfully requests that this Court grant it leave to file the attached response to the amici curiae briefs.

Respectfully submitted on October 30, 2023, by:

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CERTIFICATE OF SERVICE

I certify that on October 30, 2023 a copy of the foregoing was served on all counsel of record and on each unrepresented party by email, in accordance with La. Code Civ. Proc. art. 1313, as follows:

All counsel of record and amici curiae

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